

23CMCV01412 23CMCV01412

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-25

Motion: DEFENDANT AIR DISTRIBUTION USA, INC'S MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA

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Case Number: 23CMCV01412 Hearing Date: June 25, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ROSE ML INC.,

Plaintiff,

vs.

AIR

DISTRIBUTION USA INC, et al.,

Defendants.

AIR

DISTRIBUTION USA INC.,

Cross-Complainant,

vs.

ROSE ML

INC., et al.,

Cross-Defendants.

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CASE NO: 23CMCV01412

[TENTATIVE]

ORDER RE: DEFENDANT AIR DISTRIBUTION USA, INC'S MOTION TO COMPEL COMPLIANCE
WITH DEPOSITION SUBPOENA

Dept.

A

DATE:

June 25, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 08/30/2023

4th

AMENDED COMPLAINT FILED: 04/20/2026

CROSS-COMPLAINT

FILED: 09/19/2023

2nd

AMENDED CROSS-COMPLAINT FILED: 04/08/2026

TRIAL:

11/09/2026

MOVING PARTY: Cross-Complainant

Air Distribution USA, Inc.

RESPONDING PARTY: Cross-Defendants

Rose ML, Inc.; Sal Haddadin; Alfa Distribution, Inc.; and Corona Wholesale,

Inc.

1.

Background

This is an

action arising from an alleged breach of contract. The complaint alleges that defendants Air Distribution USA, Inc. and Robert Maneson (collectively, "Defendants") entered into an agreement with plaintiff Rose ML, Inc. ("Rose") not to sell certain products except to certain persons or under certain circumstances, and that Defendants breached this agreement.

Defendant Air

Distribution USA, Inc. ("Air Distribution") filed a cross-complaint against Rose and cross-defendants Sal Haddadin; Alfa Distribution, Inc. ("Alfa"); and Corona Wholesale, Inc. ("Corona") (collectively, "Cross-Defendants"). In the cross-complaint, Air Distribution alleges that Alfa and Corona are alter egos of Haddadin. Air Distribution alleges that Rose and Haddadin failed to pay for \$3,158,685.65 worth of tobacco products delivered to them by Air Distribution.

2.

Discussion

Air Distribution moves to compel third party Dhamir

Hannona's compliance with a deposition subpoena. Air Distribution contends that it noticed Hannona's deposition for April 7, 2026 but that Hannona neither objected nor appeared for deposition. In opposition, Cross-Defendants contend that discovery is stayed in the instant action, including Hannona's deposition.

Code of Civil

Procedure §1987.1 provides that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare."

After an anti-SLAPP motion has been filed in

an action, discovery is automatically stayed as to that action. (Code Civ. Proc., § 425.16, subd. (g).) However, a cross-complaint is considered to be a separate action from the complaint. (Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc. (2021) 59 Cal.App.5th 995, 1004.) Here, Air Distribution's notice of deposition, provided as Exhibit 2 to the declaration of attorney Kina Wong, indicates that the deposition was sought in connection with the allegations in the Second Amended Cross-Complaint ("SACC")), as the deposition topics concern transfers of money or property between Cross-Defendants and Hannona. Attorney Wong declares that this issue arose because of discovery into Haddadin's bank records, which is at issue in the SACC but not in the Fourth Amended Complaint. (Wong Decl. ¶¶ 2-3.)

Plaintiff contends that the court issued a stay on discovery on May 19, 2026. However, the May 19, 2026 minute order on Motion to Deem Request for Admissions Admitted and on Ex Parte Application for order continuing hearing on pending discovery-related matters contains no such order imposing a blanket stay on discovery. Instead, the hearing on the then-pending discovery motions were continued to dates after the hearing on the Special Motion to Strike under CCP § 425.16.

As such, discovery on this issue is not automatically stayed by the filing of an anti-SLAPP motion as to the Fourth Amended Complaint on May 14, 2026.

On March 10, 2026, Air Distribution noticed Hannona's deposition for April 7, 2026. (Wong Decl. ¶¶ 4-5.) Hannona did not object to this deposition. (Wong Decl. ¶ 6.) Hannona failed to appear for this deposition. (Wong Decl. ¶ 9.) The motion is reasonably made. Air Distribution is therefore entitled to an order compelling Hannona's compliance with Air Distribution's deposition subpoena, pursuant to Code of Civil Procedure §1987.1, subd. (a).

Although Cross-Defendants opposed the instant motion, they did not oppose the motion on substantive grounds. As the court has determined that the motion is procedurally proper, the court will grant Air Distribution's motion to compel Hannona's compliance with Air Distribution's deposition subpoena.

3. Conclusion

Based on the foregoing, the court GRANTS Cross-Complainant Air Distribution USA, Inc.'s motion to compel third party Dhamir Hannon's compliance with Air Distribution's deposition subpoena.

The deposition shall take place on July ___, 2026, at the time and location specified in the notice of deposition, unless the parties and deponent mutually agree upon a different date and time on or before July 23, 2026.

Air Distribution is ordered to give notice.

IT IS SO ORDERED.

DATED: June 25, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court